



Appeal Decision

Site visit made on 15 April 2026

by MG Garrard LLB (Hons), PGDip.LP, Solicitor

an Inspector appointed by the Secretary of State

Decision date: 9 June 2026.

Appeal Ref: 6005080

3 Woden Road, WOLVERHAMPTON, WV10 0AU

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Dean Investment Properties Ltd against the decision of Wolverhampton City Council.
 - The application Ref is 25/01284/FUL.
 - The development proposed is demolition of side extension, ground floor rear extension and COU to 6 person HMO with associated bins & cycle facilities.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The description in the banner heading above is taken from the application form, however in their decision notice, the Council used the description of, “demolition of side extension, ground floor rear extension, loft conversion with rear dormer and Change of Use of existing dwelling C3 to 6 person HMO C4 (House in Multiple Occupation) with associated bins & cycle facilities” as did the appellant in their appeal statement. This more accurately reflects the appeal proposal; therefore, I have determined it on that basis.

Main Issues

3. The main issues are the effect of the proposal on:
 - the living conditions of future occupiers with particular regard to internal space;
 - the living conditions of neighbouring occupiers with particular regard to noise and disturbance;
 - the character of the area with particular regard to activity arising from it, and refuse facilities, and;
 - the potential for crime and disorder.

Reasons

Living Conditions of future occupiers

4. The proposed HMO would comprise six bedrooms arranged over three floors with shared kitchen, dining and living spaces. The Council’s Landlords’ Guide to Amenity and Space Standards for Houses in Multiple Occupation (Amended July

2018) (Amenity Space Standards Guide) indicates that single bedrooms in HMOs should have a minimum of 10m² of usable space not including toilets and en-suite bathrooms. Three of the bedrooms would have 8m² of usable space and one would have only 6.5m². Although the plans do not show the dimensions of the communal spaces, the Council is concerned that they are below the minimum indicated in the Amenity Space Standards Guide. No clear evidence is before me to show that the communal space complies with these guidelines.

5. In the event that planning permission is granted the proposed HMO would also require a license which regulates the management, condition, and safety of HMO accommodation when it is in use. It does not avoid the need for the proposal to provide satisfactory living conditions in planning terms.
6. In HMOs, where private rooms serve as occupiers' primary personal living spaces, adequate bedroom sizes are important. Future occupiers would need to keep their personal belongings in their rooms whilst also using them as their main space for rest, study, and personal activities. Four of the proposed bedrooms are notably small and would offer very limited space for furniture, storage, and circulation, leading to a cramped and uncomfortable living environment. This would restrict the ability of future occupiers to use their rooms in a functional and dignified manner, potentially resulting in cluttered spaces that harm day-to-day living conditions.
7. This pressure is not meaningfully alleviated by the proposed communal space provision. The plans indicate a small ground floor area positioned between the front and rear bedrooms, which would also function as the primary circulation route through the house, providing access from the front entrance to a bedroom, the rear kitchen, and the stairs. This space is shown as accommodating a sofa and table; however, given its dual role as a thoroughfare and its limited size, it appears cramped and impractical. Therefore, it would be unlikely to function as a genuinely usable or comfortable communal area for up to six occupants.
8. As a result, future occupiers would be forced to rely even more heavily on their bedrooms for everyday activities. An HMO where both private and communal spaces are constrained in this way would place undue pressure on all living areas, to the detriment of overall living conditions, resulting in a poor quality and substandard residential environment.
9. For these reasons I conclude that the effect of the proposal on the living conditions of future occupiers with particular regard to internal space would be unacceptable. Therefore, the development proposal would fail to accord with Policy H6 of the Wolverhampton Unitary Development Plan 2001-2011 (2006) (UDP) in so far as it specifies that a high standard of design will be required for all housing developments including that they should be of an appropriate scale density and proportions. It would also conflict with the Black Country Core Strategy (2011) (BCCS) Policy CSP4 in so far as it requires a high quality of design of the built environment, and BCCS Policy HOU2 with regard to its requirement for density of housing on each site to be informed by the need to achieve high quality design and minimise amenity impacts.

Living conditions of neighbouring occupiers

10. The appeal site is located on a predominantly residential street, albeit with retail, commercial and religious premises nearby. A rail line runs to the rear of the appeal site. At the time of my site visit, Woden Road was heavily trafficked and connects

a short distance away with Cannock Road, where there is a notable concentration of commercial and retail activity. Consequently, there is a significant level of background activity against which the effects of the proposed development would be experienced.

11. I recognise that a large or extended family could generate a high degree of comings and goings. However, the use of the property as a six-bedroom HMO would be likely to result in a much greater intensity and frequency of activity than a single household in a dwelling of this size. Occupiers would lead independent lifestyles with differing routines occurring at varying times throughout the day and night. As an end of terrace, the appeal site is in close proximity to nearby dwellings. The modest size of the dwelling for the number of proposed future occupiers would concentrate the activity increasing the likelihood of noise and disturbance being experienced by neighbouring occupiers, even allowing for the prevailing levels of activity in the surrounding area.
12. I therefore conclude that the development proposal would have a harmful effect on living conditions of existing neighbouring occupiers with particular regard to noise and disturbance. Accordingly, it would conflict with Policy H6 of the UDP with regard to the requirement to consider proposals on the basis of the ability of the design to, amongst other things, be compatible with adjacent uses, protect the amenity of neighbouring residents and create a development of an appropriate scale, density and proportions. It would also fail to comply with UDP Policy EP5 to the extent that it indicates that developments which are likely to give rise to unacceptable levels of noise pollution will not be permitted, and Policies CSP4 and ENV3 of the BCCS in so far as they seek proposals which make a positive contribution to place making and environmental improvements, and high quality design that stimulates economic, social and environmental benefits.

Character of the area

13. As set out above, the six-bedroom HMO would lead to additional comings and goings, which could give rise to some noise and disturbance for neighbouring occupiers. The Council's transport evidence indicates that sufficient secure cycle parking would be provided, and a significant increase in car parking demand, compared with the existing family dwelling, is not anticipated. Against the backdrop of a busy area characterised by a mix of residential, commercial and retail uses, where a relatively high level of activity and movement already occurs, the evidence before me does not indicate that the level of activity generated by people or vehicles arising from the development proposal would be so unusual or intensive as to materially alter the overall character of the area.
14. A bin storage area is proposed at the rear of appeal property, out of view of the street frontage, and there is no clear evidence before me that this would be insufficient to store the required number of bins and recycling facilities. There is sufficient space to the side of the appeal property to move the bins for collection.
15. For these reasons, I conclude that the proposal would not harm the character of the area with particular regard to activity arising from it and refuse facilities. Therefore, in these respects the proposal does not conflict with Policy D6 of the UDP in seeking proposals which comprise site specific design solutions that respond explicitly to the site and its context, or Policy H6 of the UDP in so far as it requires the design of proposals to respect and enhance local character.

16. Refusal Reason one also refers to Policy D10 of the UDP, however this policy relates to community safety, and it has not been explained how it relates to the main issues in respect of living conditions of future occupiers or character of the area. Consequently, with regard to those main issues, it weighs neither in favour nor against the proposal.

Crime and disorder

17. The concerns raised are that the development proposal could increase crime, disorder, and fear of crime in an area already experiencing such issues, citing general associations between HMOs, higher turnover, and anti-social behaviour. However, the evidence provided is broadly generic and does not demonstrate that existing HMOs in the area have materially increased crime, nor that this proposal would do so. In the absence of clear, site-specific evidence establishing a likely causal link, the concerns are speculative.
18. The Police also suggest measures relating to tenant management and security. While potentially beneficial, these are operational matters and do not demonstrate that the development proposal would be unsafe in planning terms, nor could many reasonably be secured by condition.
19. For these reasons, I conclude that the evidence before me does not show the effect of the proposal on the potential for crime and disorder would be detrimental. Consequently, the development proposal would not conflict with UDP Policy D10 with regard to its requirement for development to take full account of the need to prevent crime, reduce the fear of crime and promote community safety through the design process.

Other Matters

20. I have considered the appellant's case regarding housing need and demand, including the role of HMOs in providing more affordable accommodation. Paragraph 61 of the National Planning Policy Framework (the Framework) seeks to significantly boost housing supply and ensure that the needs of groups with specific requirements are met. HMOs can contribute to housing choice in this regard. Policies in the development plan have been cited which support a mix of housing types and tenures, with no requirement for the area to remain solely in single-family use, subject to design and amenity considerations. These factors weigh in favour of the proposal in principle, but this is subject to compliance with policies protecting living conditions and the character of the area which I have considered above.

Conclusion

21. For the reasons given above, the appeal proposal would conflict with the development plan when read as a whole, and material considerations are not of sufficient weight to justify a decision other than in accordance with it.
22. Therefore, I conclude that the appeal should be dismissed.

MG Garrard

INSPECTOR